THE CUTCHI MEMONS ACT, 1938

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title and commencement.

2. Cutchi Memons to be governed in certain matters by Muhammadan Law.

3. Savings.

4. [*Repealed*.]

IndiaCode

THE CUTCHI MEMONS ACT, 1938

ACT NO. 10 OF 1938[1]

[8*th April*, 1938.]

An Act to provide that all Cutchi Memons shall be governed in matters of succession and inheritance by the Muhammadan Law.

WHEREAS it is expedient that all Cutchi Memons be governed in matters of succession and inheritance by the Muhammadan Law; It is hereby enacted as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Cutchi Memons Act, 1938.

(*2*) It shall come into force on the 1st day of November, 1938.

2. Cutchi Memons to be governed in certain matters by Muhammadan Law.—Subject to the provisions of section 3, all Cutchi Memons shall, in matters of succession and inheritance, be governed by the Muhammadan Law.

3. Savings.—Nothing in this Act shall affect any right or liability acquired or incurred before its commencement, or any legal proceeding or remedy in respect of any such right or liability; and any such legal proceeding or remedy may be continued or enforced as if this Act had not been passed.

4. [Repealed.]—*Rep. by the Repealing and Amending Act*, 1942 (25 *of* 1942), s. 2 *and the First Schedule* (*w.e.f.* 1-10-1942).

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1. The Act has been applied to the Sonthal Parganas district and the Chota Nagpur division subject to certain modifications, by Bihar Government Notifn., No. 1089/A-15/40-J. R., dated 31st August, 1940. It has also been applied to all the partially-excluded areas of the Province of Orissa by Orissa Government Notifn. No. 2266-111C-14/41-Com., dated 23rd July, 1942.